

Instructions for Petition to Close Nonconviction Records ([N.D.C.C. § 12-60.1-05](#))

The ND Legal Self Help Center can't provide assistance in criminal matters and doesn't have forms, procedures, or expertise available in this area.

If you have questions about this form, contact the office of the [Clerk of Court](#) where your criminal case is currently filed.

You may use this form if all of the following are true and correct:

- 1) A North Dakota State District Court or municipal court entered an order of nonconviction **before August 1, 2025**;
 - An order of nonconviction means **all** of the criminal charges in your case were **dismissed**, or you were **acquitted** of **all** criminal charges in your case.
- 2) The dismissal **wasn't** the result of a plea agreement involving a conviction on another offense;
- 3) The case **wasn't** dismissed due to a finding the individual wasn't fit to proceed under [N.D.C.C. Chapter 12.1-04](#);
- 4) The case **didn't** result in a verdict of not guilty due to lack of criminal responsibility under [N.D.C.C. Chapter 12.1-04.1](#); **and**
- 5) The case **wasn't** appealed.

To fill out this Petition to Close Nonconviction Records form:

- Fill in the same County, Judicial District, and Case Number of your criminal case. If you don't know the Judicial District, you may leave that space blank.
- Fill in your name as the Defendant.
- Paragraph 1: Fill in your name as the Defendant.
- Paragraph 3: Read all of the statements. **If you can't check (✓) all three boxes, you can't use this form.**
- If every paragraph of the form is true and correct for you, date and sign the form.
 - If every paragraph **isn't** true and correct for you, you can't use this form.
- Fill in the lines after your signature.

To fill out the (Proposed) Order on Petition to Close Nonconviction Records form:

- Fill in the top (caption) **exactly** as you filled in the top of your Petition.
- Paragraph 3: Read the two statements. If you checked (✓) **both** dismissal boxes on your Petition, check (✓) the first box. If you checked (✓) the acquittal box on your Petition, check (✓) the second box.
- **Don't** sign or date the form. If the judge uses your proposed order, the judge signs.

File your original Petition with the Clerk of Court:

- Make a copy of your completed, dated, and signed Petition form for your records.
- File the **original** of your completed, dated, and signed Petition with the Clerk of Court where your criminal case is filed.
 - ndcourts.gov/court-locations
- There's **no** filing fee.
- **The individual judge in your case may require you to serve a copy of the Petition on the Prosecutor.**

If you meet the requirements to have your case closed, the court enters an order closing the court record **within ten days of the petition being filed.**

Only the records controlled by the North Dakota court system are closed. The order won't close any records controlled by the Prosecutor or other law enforcement entities.

If a North Dakota State District Court or municipal court entered an order of nonconviction **on or after August 1, 2025:**

If a North Dakota state district court or municipal court entered an order of nonconviction **on or after August 1, 2025**, you don't need to do anything.

After **61 days** from the date the court entered the order of nonconviction, the court closes the court record.

When nonconviction court records are closed, only the following have access:

- A clerk of court;
- A judge of the court;
- The juvenile commission;
- A criminal justice agency;
- The defendant;
- The defendant's lawyer;
- The state's attorney; and
- Any person with a written order of the judge of the court.

State of North Dakota

In District Court

County of Burleigh

South Central Judicial District **Judicial District**

State of North Dakota

Plaintiff,

vs

Marion T. Ellsworth

Defendant.

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Case No. 2023CR004182

Petition to Close Nonconviction Records

1. **Comes Now** Petitioner, Marion T. Ellsworth, the Defendant in the above-entitled case, and hereby Petitions the Court for an order closing their nonconviction court records in this case under Section 12-60.1-05 of the North Dakota Century Code.

2. Section 12-60.1-01(5) of the North Dakota Century Code states that "Nonconviction" means dismissal of **all** criminal charges in a case **or** acquittal of **all** criminal charges in a case."

3. All of the criminal charges in the above-entitled case were resolved by either dismissal or acquittal. Check the applicable statements:

☐ The dismissal **was not** the result of a plea agreement involving a conviction on another criminal offense.

☐ The dismissal **was not** due to a finding that Petitioner was not fit to proceed under Chapter 12.1-04 of the North Dakota Century Code: Juveniles – Intoxication – Fitness to Proceed.

☐ The acquittal **was not** the result of a not guilty verdict due to Petitioner's lack of criminal responsibility under Chapter 12.1-04.1: Criminal Responsibility and Post-Trial Responsibility Act.

4. This case **was not** appealed.

5. Because the court in this case entered the order of nonconviction before August 1, 2025, Petitioner files this petition to have this court record closed.

6. Based on the above, Petitioner meet the requirements of Section 12-60.1-05 for the court to close this court record.

7. Petitioner respectfully requests that the court enter an order closing this court record within ten days of this petition being filed.

8. I declare, under penalty of perjury under the law of North Dakota, that the foregoing is true and correct.

Signed on _____ (date) in Bismarck (city),
Burleigh (county), ND (state), _____ (country).

(Signature)

Marion T. Ellsworth

(Printed Name)

418 Sycamore Ridge Road

Bismarck, ND 58501

(Address)

(City, State, Zip Code)

555-0142

(Telephone Number)

(Email Address)

State of North Dakota

In District Court

County of Burleigh

South Central Judicial District Judicial District

State of North Dakota

Plaintiff,

vs

Marion T. Ellsworth

Defendant.

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Case No. 2023CR004182

Order on Petition to Close
Nonconviction Records

1. The Petitioner, the Defendant in the above-entitled case, petitioned the Court for an order closing their nonconviction court records in this case under Section 12-60.1-05 of the North Dakota Century Code.

Findings of Fact

2. The court in this case entered the order of nonconviction before August 1, 2025.

3. All of the criminal charges in this case were resolved by:



Dismissal. The dismissal **was not** the result of a plea agreement involving a conviction on another criminal offense, **and was not** due to a finding that Petitioner was not fit to proceed under Chapter 12.1-04 of the North Dakota Century Code: Juveniles – Intoxication – Fitness to Proceed.



Acquittal. The acquittal **was not** the result of a not guilty verdict due to Petitioner's lack of criminal responsibility under Chapter 12.1-04.1: Criminal Responsibility and Post-Trial Responsibility Act.

4. This case **was not** appealed.

Conclusions of Law

5. Based on the above, Petitioner meets the requirements of Section 12-60.1-05 for the court to close this court record.

Order

6. The clerk of court is ordered to promptly close the court record. The court records in this case are confidential records under Rule 41, Section 3(b)(6) of the North Dakota Supreme Court Administrative Rules.

7. Only the following shall have access:

- Clerk of court;
- Judge of the court;
- The juvenile commission;
- A criminal justice agency;
- The Defendant;
- The Defendant's lawyer;
- The state's attorney; and
- Any person with a written order of the judge of the court.

Judge of District Court